BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

UNITED PARCEL SERVICE, INC., and DOES 1 through 10, inclusive,

Defendants.

Case No. 2:26-cv-02847-DAD-CKD

FIRST AMENDED COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF

(1) Violation of Cal. Penal Code § 290.46(j)(2)(E), (j)(4)(A);
(2) Preventive Relief, Cal. Penal Code § 290.46(j)(4)(B);
(3) Violation of ICRAA, Cal. Civ. Code § 1786.16(b)(1);
(4) Violation of ICRAA, Cal. Civ. Code § 1786.16(a)(2)(B)

DEMAND FOR JURY TRIAL

Action filed: July 15, 2026
Removed: August 20, 2026

Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff") alleges as follows against Defendant UNITED PARCEL SERVICE, INC. ("UPS") and DOES 1 through 10. Allegations about Plaintiff's own acts and experiences are made on personal knowledge. Allegations about the contents of documents are made on the documents themselves, copies of which are attached as Exhibits 1 and 2 (both excerpts of records UPS filed with its motion to dismiss in this action). All other allegations are made on information and belief, formed after reasonable inquiry; facts about UPS's internal screening criteria, adjudication, and decision records are peculiarly within the possession of UPS and its screening vendor. Page citations to an exhibit

refer to the page of that exhibit following its cover sheet.

INTRODUCTION

1. On July 17, 2024, Plaintiff applied to work as a Loader/Unloader on the Twilight shift at UPS's Lathrop, California hub. UPS's screening vendor, First Advantage, ran four searches for UPS. The Social Security verification scored "Pass." The criminal-records search returned "No Record Found" and scored "Eligible." The only searches that returned anything were the sex offender registry searches. They returned one record, scored "Decisional," whose report entry reads: "SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY." On July 19, 2024, the report was scored: "BASED ON YOUR CRITERIA, THE OVERALL CASE SCORE IS INELIGIBLE." Two days later UPS cancelled Plaintiff's scheduled first-day appointment, and on July 31, 2024 it took final adverse action denying him the job.

2. California law forbids that use. Except as authorized to protect a person at risk or by another provision of law, "use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited: . . . (E) Employment." Cal. Penal Code § 290.46(j)(2) (the "section" is section 290.46). UPS has told this Court that it "used" the sex offender registry result "when making its employment decisions related to Plaintiff." The registry record UPS used came from California. This action seeks the damages and preventive relief that section 290.46(j)(4) provides, and statutory damages under the Investigative Consumer Reporting Agencies Act for UPS's separate failures in procuring the report.

3. This First Amended Complaint supersedes the original Complaint and is intended to be complete in itself without reference to any prior pleading [E.D. Cal. L.R. 220]. It does not reassert the original Complaint's Second (failure to hire in violation of public policy), Fourth (invasion of privacy), Fifth (negligence per se), or Sixth (Business and Professions Code section 17200) causes of action.

PARTIES

4. Plaintiff is a natural person who resides in Stockton, San Joaquin County, California, and is a citizen of California. UPS's records and its vendor's report refer to Plaintiff as "Brendan Ngwanforbi," "Brendan Ngehsi Ngwanforbi," "Brendan Ngehsi Ngwa-Nforbi," and "Nforbi Brendan Ngwa." Each refers to Plaintiff.

5. Defendant UPS is, as UPS alleged in its Notice of Removal, an Ohio corporation with its principal place of business in Atlanta, Georgia. UPS does business throughout California, including at its Lathrop hub, 11800 South Harlan Road, Lathrop, San Joaquin County, California. At all relevant times UPS was a prospective employer of Plaintiff and the person that requested, procured, received, and used the background report described below for employment purposes.

6. Plaintiff does not know the true names or capacities of Defendants sued as DOES 1 through 10. On information and belief, each DOE is an individual or entity -- including any UPS adjudicator, hiring manager, or agent acting for UPS -- who participated in, directed, or ratified the use of Plaintiff's registry information for employment purposes or the procurement of the report described below, and is responsible in some manner for the injuries alleged. Plaintiff will seek leave to amend when their identities are ascertained. Each defendant acted as the agent of UPS within the course and scope of that agency.

JURISDICTION AND VENUE

7. Plaintiff commenced this action on July 15, 2026, in the Superior Court of California, County of San Joaquin. UPS removed it to this Court on August 20, 2026, invoking diversity jurisdiction. Plaintiff is a citizen of California; UPS is a citizen of Ohio and

Georgia; and UPS has alleged that the amount in controversy exceeds $75,000, exclusive of interest and costs. This Court has subject-matter jurisdiction under 28 U.S.C. § 1332(a).

8. Venue is proper in this District because this is the district embracing the place where the state action was pending, 28 U.S.C. § 1441(a), and because a substantial part of the events giving rise to the claims occurred in San Joaquin County, 28 U.S.C. § 1391(b)(2). Assignment to the Sacramento Division is proper [E.D. Cal. L.R. 120(d)].

9. This Court has personal jurisdiction over UPS, which does business in California, operates the Lathrop hub where Plaintiff applied, removed this action, and has appeared in it.

STATUTORY BACKGROUND

A. Penal Code § 290.46 ("Megan's Law")

10. Penal Code section 290.46(a)(1) provides that "the Department of Justice shall make available information concerning persons who are required to register pursuant to Section 290 to the public via an internet website as specified in this section." That website is commonly called the "Megan's Law website."

11. Section 290.46(j)(1) provides: "A person is authorized to use information disclosed pursuant to this section only to protect a person at risk."

12. Section 290.46(j)(2) provides:

> "Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited: (A) Health insurance. (B) Insurance. (C)

Loans. (D) Credit. (E) Employment. (F) Education, scholarships, or fellowships. (G) Housing or accommodations. (H) Benefits, privileges, or services provided by any business establishment."

13. Section 290.46(j)(3) provides: "This section shall not affect authorized access to, or use of, information pursuant to, among other provisions, Section 11105 and 11105.3 of this code, Section 8808 of the Family Code, Section 777.5 and 14409.2 of the Financial Code, Section 1522.01 and 1596.871 of the Health and Safety Code, and Section 432.7 of the Labor Code."

14. Section 290.46(j)(4)(A) provides:

"Any use of information disclosed pursuant to this section for purposes other than those provided by paragraph (1) or in violation of paragraph (2) shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000)."

15. Section 290.46(j)(4)(B) provides, in part:

"Whenever there is reasonable cause to believe that any person or group of persons is engaged in a pattern or practice of misuse of the information available via an internet website established pursuant to this section in violation of paragraph (2), the Attorney General, any district attorney, or city attorney, or any person aggrieved by the misuse is authorized to bring a civil action in the appropriate court requesting preventive relief, including an application for a

permanent or temporary injunction, restraining order, or other order against the person or group of persons responsible for the pattern or practice of misuse."

16. The prohibition in section 290.46(j)(2) and the damages remedy in section 290.46(j)(4)(A) both attach to "information disclosed pursuant to this section." Neither is limited to a person who personally visits the Megan's Law website. An employer that receives California Megan's Law information through an intermediary -- a screening company, or a search engine that queries the California website -- and acts on it uses "information disclosed pursuant to this section" just as surely as an employer that types in the website address.

17. The California Court of Appeal has explained that "the statutory liability created by the MLW statute should be limited to employers who 'use' information disclosed on the MLW as a basis for an employment decision," and that an applicant's "cause of action, if any, lies against his prospective employer," not the screening company that reported the information. Mendoza v. ADP Screening & Selection Services, Inc. (2010) 182 Cal.App.4th 1644 [pin cites unverified]. UPS is the prospective employer here.

B. The National Sex Offender Public Website Searches the State Websites

18. The United States Department of Justice, through its Office of Sex Offender Sentencing, Monitoring, Apprehending, Registering, and Tracking ("SMART"), maintains the National Sex Offender Public Website ("NSOPW"). According to the Department of Justice's own published fact sheet, "NSOPW vs NSOR," NSOPW "uses web services to search the individual public registry websites from each of the jurisdictions in real time"; "NSOPW is not a single national database of all registered sex offenders"; and "NSOPW serves merely as a central search engine for all public registry websites." (U.S. Dep't of Justice, SMART Office, "NSOPW vs NSOR" fact sheet, smart.ojp.gov/nsopw-nsor-fact-sheet.)

19. The same fact sheet states: "If an offender is not displayed on the jurisdiction's public registry website, the offender will not appear on NSOPW." A California registrant appears in an NSOPW search result only because, and only to the extent that, the California Department of Justice has displayed that person's information on the California Megan's Law website under section 290.46.

20. The only single national database of registered sex offenders is the National Sex Offender Registry ("NSOR") maintained by the Federal Bureau of Investigation's Criminal Justice Information Services Division. According to the Department of Justice fact sheet, NSOR information is "available only to law enforcement and authorized criminal justice agencies." On information and belief, First Advantage is a private screening company, not a law-enforcement or criminal justice agency, and has no access to NSOR for employment screening.

21. On information and belief, outside of law enforcement, California registry information is made available to the public through the Megan's Law website maintained under section 290.46, and a private screening company that reports a record whose source is the California sex offender registry obtained that record, directly or through NSOPW, from information disclosed pursuant to section 290.46.

C. Labor Code § 432.7(n)

22. Labor Code section 432.7(n) provides, in relevant part: "This section does not prohibit an employer, whether a public agency or private individual or corporation, required by state, federal, or local law to conduct criminal background checks for employment purposes or to restrict employment based on criminal history from complying with those requirements, or to prohibit the employer from seeking or receiving an applicant's criminal history report that has been obtained pursuant to procedures otherwise provided for under

federal, state, or local law."

23. Section 432.7(n) states what section 432.7 "does not prohibit." It does not authorize any use of information disclosed under Penal Code section 290.46. Its first clause applies only to an employer "required by state, federal, or local law" to conduct criminal background checks or to restrict employment based on criminal history. Its second clause concerns "seeking or receiving" a "criminal history report"; it says nothing about using Megan's Law information to deny employment.

FACTUAL ALLEGATIONS

D. Plaintiff Applies, Qualifies, and Is Scheduled to Start

24. On July 17, 2024, beginning at approximately 6:46 p.m., Plaintiff applied online through UPS's applicant system for the position designated "US - LATHROP HUB (CALAH) - 75456-Loader/Unloader - Hub - H345 - E&L - Twilight Monday-Friday 15:00-23:30 - External." (Ex. 2 at 1.)

25. The position was a Loader/Unloader job inside UPS's Lathrop package hub on the Twilight shift, Monday through Friday, 3:00 p.m. to 11:30 p.m. On information and belief, the position involved loading, unloading, and sorting packages inside the hub; it did not involve entering customers' homes, delivering to residences, or supervising or caring for children, elders, dependent adults, or any other identified person at risk.

26. Plaintiff was qualified for the position. He answered UPS's qualification questions in the affirmative (reliable transportation; ability to perform the essential functions; work authorization; age 18 or older). (Ex. 2 at 1.) UPS's system advanced him through every application stage. At 6:53 p.m. on July 17, 2024, he accepted the pay UPS offered for the

position ("I accept this pay"). (Ex. 2 at 4.) He completed UPS's policy sign-offs and its safety training video, which UPS's system described as preparation "for your first day on the job." (Ex. 2 at 4-5.)

27. At 7:06 p.m. on July 17, 2024, UPS's system scheduled Plaintiff's "Hired Date" appointment for July 22, 2024, 4:00 p.m. to 8:00 p.m. (PDT), at 11800 S. Harlan Road, Lathrop, California. (Ex. 2 at 5.) UPS then directed him to complete Section 2 of his Form I-9 "as soon as possible and before your first day of work." (Id.)

E. The Disclosure and Authorization Screens

28. At 6:49 p.m. on July 17, 2024, UPS's system presented Plaintiff with three screens in succession: (a) an "FCRA Notice" containing a federal Fair Credit Reporting Act disclosure followed by an "Authorization"; (b) a screen titled "FCRA - State Group 1 Disclosure (CA, MN, NJ, OK)," containing notices for applicants in California, Minnesota, New Jersey, and Oklahoma, including a Minnesota statutory-rights notice; and (c) a screen titled "FCRA California Disclosure," headed "ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS." (Ex. 2 at 2-3.) Each screen ended with a statement in substantially this form: "I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this agreement and understand its contents," followed by "I agree." (Id.)

29. The "ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS" screen told Plaintiff that UPS "may obtain a report about you for employment purposes that is defined under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code §§ 1786 to 1786.80, as an 'investigative consumer report,'" to be prepared by First Advantage, and that the information "will be used to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the job for which you are being considered." (Ex. 2

at 3.)

30. The California paragraph of the multi-state screen told Plaintiff that, because the position "will involve access to confidential financial and other business information and valuable property belonging to UPS's customers," UPS needed a report "to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the performance of your job," and that UPS intended to obtain it "pursuant to section 1024.5(a)(7) of the California Labor Code." It then stated: "You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below." (Ex. 2 at 3.)

31. There was no such box. In UPS's own record of the screen, the only thing beneath the electronic-signature statement is "I agree." (Ex. 2 at 3.) The "ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS" screen likewise contains no box by which Plaintiff could request a copy of the report. (Id.) The open squares printed beside the words "CALIFORNIA," "MINNESOTA," "NEW JERSEY," and "OKLAHOMA" on the multi-state screen are not beneath any signature, are not labeled as a request for a copy, and show no mark in UPS's record. On information and belief, UPS's application process gave Plaintiff no means, by a box to check on a written form, to indicate that he wished to receive a copy of the report, and UPS's records reflect no such election by Plaintiff.

32. On information and belief, UPS did not itself send Plaintiff a copy of the report. The only access Plaintiff received was a First Advantage portal link sent with the July 22, 2024 pre-adverse action e-mail described below. That link has since expired.

33. None of UPS's screens identified the searches UPS actually ordered. The FCRA Notice referred generally to "a criminal background report, employment history, driving record, education history, and/or other consumer reports." (Ex. 2 at 2.) The California screen stated only that the report "may include information on your character, general reputation,

personal characteristics, and mode of living." (Ex. 2 at 3.) No screen told Plaintiff that UPS would order a sex offender registry search, or a search of a Department of Justice website, as part of the investigation.

34. The "ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS" screen lists First Advantage's mailing address, telephone, fax, e-mail, and "Web: www.fadv.com" as contact information, but it does not tell the consumer that the website is where the consumer may find information about First Advantage's privacy practices, and it says nothing about whether the consumer's personal information will be sent outside the United States or its territories. (Ex. 2 at 3.)

35. The California-required disclosures were thus split between the multi-state screen, which also carried other States' notices and rights, and the California screen, which also carried an electronic-signature agreement and an acknowledgment that the applicant had "carefully reviewed this Agreement." (Ex. 2 at 2-3.) Neither was a document consisting solely of the disclosure.

F. The First Advantage Report

36. UPS ordered the report from First Advantage at 9:52 p.m. Eastern Time on July 17, 2024 (6:52 p.m. Pacific). The report was completed at 6:50 p.m. Eastern Time on July 18, 2024. It lists the client as "UNITED PARCEL SERVICE," the job profile as "H345 - Loader/Unloader - Hub," the primary job location as "US - LATHROP HUB (CALAH)," and the package as "STANDARD PACKAGE." (Ex. 1 at 3-4.)

37. The report's "Background Report Summary" lists each search ordered and its score: "Social Security Verification" -- "Pass"; "First Advantage National Criminal File Plus STOCKTON, SAN JOAQUIN, CA" -- "Eligible"; and "National Sex Offender Registry

Search - Department Of Justice Web Site" -- "Decisional." The registry searches are the only components marked for review ("Yes**"). (Ex. 1 at 4.)

38. The criminal-records search returned "Search Results No Record Found" and scored "Eligible." (Ex. 1 at 5.) The report contains no record of any arrest, detention, or conviction.

39. The registry search's detail block reads, in relevant part: "National Sex Offender Registry Search - Department Of Justice Web Site Score: Decisional"; "Record Source NATIONAL SEX OFFENDER REGISTRY"; "Search Results Record Found"; "Search Type NATIONAL SEX OFFENDER REGISTRY SEARCH-DEPT OF JUSTICE"; and, in the field describing the record returned, "SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY" and "SENTENCE: REGISTERED SEX OFFENDER." (Ex. 1 at 6.)

40. The two source fields report different things. "Record Source" identifies the search that was run. "SOURCE OF RECORD" identifies the registry that supplied the record the search returned: California's.

41. On information and belief, the search First Advantage ran for UPS -- labeled a "Department Of Justice Web Site" search -- was a search of NSOPW, the United States Department of Justice's public website, which returned Plaintiff's information from the California Megan's Law website in real time as alleged in paragraphs 18 through 20. In the alternative, on information and belief, the search was run directly or indirectly against the California Department of Justice's Megan's Law website. Either way, the record originated in information disclosed pursuant to Penal Code section 290.46.

42. Plaintiff is required to register under Penal Code section 290. On information and belief, in July 2024 the California Department of Justice displayed information about Plaintiff

on the Megan's Law website pursuant to section 290.46, and that displayed information is the information First Advantage reported to UPS as "SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY."

43. On July 19, 2024, the report was scored: "BASED ON YOUR CRITERIA, THE OVERALL CASE SCORE IS INELIGIBLE," with the comment "Adjudicated by the Centralized Adjudication Team." (Ex. 1 at 4.) "YOUR CRITERIA" refers to UPS's criteria. On information and belief, UPS supplied First Advantage with adjudication criteria under which a sex offender registry record is "Decisional" -- that is, disqualifying -- for UPS hub positions in California. Because every other component of the report was clear, the "INELIGIBLE" score rests on the California registry record.

44. The report also carried this remark to UPS: "City Ordinance, State, or Federal law requires additional action and disclosure by employer to consumer prior to taking adverse action based on Consumer Report. FADV cannot provide Adverse Action letter mailing service on this candidate." (Ex. 1 at 4.)

G. UPS Uses the Registry Record to Deny Plaintiff the Job

45. At 3:59 a.m. on July 21, 2024 -- two days after the "INELIGIBLE" score and before UPS or First Advantage had sent Plaintiff any notice -- UPS's applicant system recorded Plaintiff's July 22 "Hired Date" appointment as "Cancelled 07/21/2024 03:59AM." (Ex. 2 at 5.) On information and belief, UPS cancelled the appointment because of the "INELIGIBLE" score.

46. At 9:57 a.m. on July 22, 2024, Plaintiff received an e-mail from First Advantage (DoNotReply@fadv.com) titled "Pre Adverse Action Notification regarding your application with UPS," directing him to a First Advantage portal. Reminder e-mails followed on July 23

and July 27, 2024.

47. At 9:57 a.m. on July 31, 2024, Plaintiff received an e-mail from First Advantage titled "Final Adverse Action Notification regarding your application with UPS." UPS's applicant system now records Plaintiff's application at the stage "Rejected," stating: "This opportunity was not a match at this time." (Ex. 2 at 6.)

48. UPS never identified to Plaintiff any reason for the denial other than the background report. Nothing else in Plaintiff's application or the report was disqualifying.

49. UPS has since represented to this Court that it "does not dispute the fact that it used information derived from Plaintiff's criminal background check when it made the decision to not hire him" (UPS's Rule 12(b)(6) Motion to Dismiss, Part IV), and that "when UPS learned that Plaintiff was included on the National Sex Offender Registry, it used that information when making its employment decisions related to Plaintiff" (UPS's Reply in Support of Motion to Dismiss, Part II.A). UPS has also acknowledged that the search "yielded a result indicating that Plaintiff was also included on the California Sex Offender Registry." (Id.) Because the criminal-records search found nothing (paragraph 38), the "information" UPS used was the registry record.

H. UPS's Use Was Not Authorized by Section 290.46(j)(1) or Any Other Law

50. UPS did not use the registry information to protect a person at risk. UPS told Plaintiff in writing that it obtained the report to evaluate "an unacceptable risk of theft or other dishonest behavior." (Paragraphs 29-30.) A sex offender registration says nothing about theft or dishonesty. UPS invoked Labor Code section 1024.5(a)(7), a statute governing consumer credit reports. The position was an in-hub package-handling job with no identified person at risk (paragraph 25). The adjudication was a score applied "BASED ON YOUR CRITERIA"

by a centralized team, not an assessment of any risk to any identified person.

51. No federal, state, or local law required UPS to conduct criminal background checks for, or to restrict employment based on criminal history in, a Loader/Unloader hub position. UPS ran the check as part of its standard pre-employment screening, and UPS has not identified any law requiring it. Labor Code section 432.7(n) therefore does not apply (paragraphs 22-23).

52. Labor Code section 432.7 concerns records of arrest, detention, and conviction. The report contained none (paragraph 38). A registration status reported from the California sex offender registry is not a section 432.7 record, and section 432.7 does not authorize the use of information disclosed pursuant to Penal Code section 290.46 for employment. Nothing in Penal Code section 290.46(j)(3) or any other provision of law authorized UPS's use.

53. UPS has asserted that it complied with Government Code section 12952 [statute text not verified for this draft]. Any such compliance would not authorize the use of information disclosed pursuant to Penal Code section 290.46, which section 290.46(j)(2) prohibits independently. In any event, on information and belief, UPS made no individualized assessment of Plaintiff and cancelled his scheduled start before giving him any notice (paragraph 45).

I. UPS's Conduct Was Deliberate and Is a Continuing Practice

54. UPS is one of the largest employers in the United States. It maintains a "Centralized Adjudication Team," supplies its own adjudication criteria to its screening vendor, and includes a "National Sex Offender Registry Search - Department Of Justice Web Site" in its "STANDARD PACKAGE" for California hub positions. (Ex. 1 at 3-4.) On information and belief, UPS applies the same package and the same criteria -- treating a

registry hit as "Decisional" -- to applicants throughout California, so that every California applicant who appears on the California Megan's Law website is scored ineligible. UPS has maintained in this action that this use is lawful.

55. UPS chose to use California Megan's Law information to disqualify Plaintiff despite the plain prohibition in section 290.46(j)(2)(E), despite its own written statement that the report was for evaluating theft and dishonesty risk, and despite its vendor's remark that the law required additional action before adverse action. Its conduct was knowing and willful.

J. Damages

56. As a direct and proximate result of UPS's conduct, Plaintiff lost the Loader/Unloader position and the wages and benefits it would have paid, at the rate UPS offered and Plaintiff accepted on July 17, 2024, from the scheduled July 22, 2024 start forward, in an amount to be proven at trial.

57. Plaintiff also suffered emotional distress, including humiliation, anxiety, and mental anguish, from being told he was "Ready to Hire," scheduled for his first day, and then branded "INELIGIBLE" and rejected because of information the Legislature has forbidden employers to use, together with financial hardship to himself and his household.

58. Plaintiff remains subject to registration. He continues to seek warehouse and package-handling work in the Stockton-Lathrop area, where UPS operates a major hub, and UPS's rejection notice told him that "there are many other opportunities at UPS" and invited him to "explore more at UPSjobs.com." (Ex. 2 at 6.) Plaintiff would apply again for UPS hub positions, but UPS's criteria will again score him "INELIGIBLE" on the basis of California Megan's Law information unless UPS is restrained.

FIRST CAUSE OF ACTION

Use of Megan's Law Information for Employment

(Cal. Penal Code § 290.46(j)(2)(E), (j)(4)(A))

(Against All Defendants)

59. Plaintiff incorporates paragraphs 1 through 58 as though fully set forth here.

60. The California sex offender registry record that First Advantage reported to UPS was "information disclosed pursuant to" Penal Code section 290.46 (paragraphs 18-20 and 39-42).

61. UPS used that information for purposes relating to employment: it applied criteria that scored the record "Decisional," scored Plaintiff "INELIGIBLE," cancelled his scheduled start, and denied him the position (paragraphs 43-49).

62. UPS's use was not authorized by section 290.46(j)(1), because it was not made to protect a person at risk, and was not authorized by any other provision of law, including Labor Code section 432.7 (paragraphs 50-53). The use therefore was "for purposes other than those provided by paragraph (1)" and "in violation of paragraph (2)" within section 290.46(j)(4)(A).

63. UPS's use of the information was a substantial factor in causing Plaintiff's damages alleged in paragraphs 56 through 58.

64. Under section 290.46(j)(4)(A), UPS is liable to Plaintiff for his actual damages; for an additional amount, as determined by the jury, not exceeding three times the amount of actual damage and not less than the statutory minimum; and for attorney's fees, exemplary damages, or a civil penalty as provided by that subparagraph. Because UPS's use was knowing and willful (paragraphs 54-55), Plaintiff seeks exemplary damages or, in the alternative, the

civil penalty.

SECOND CAUSE OF ACTION

Preventive Relief Against a Pattern or Practice of Misuse

(Cal. Penal Code § 290.46(j)(4)(B))

(Against UPS)

65. Plaintiff incorporates paragraphs 1 through 58 and 59 through 64 as though fully set forth here.

66. The California Megan's Law website is "an internet website established pursuant to" section 290.46. NSOPW searches that website in real time and returns its information (paragraphs 18-20). The registry information UPS used is "information available via" that website.

67. There is reasonable cause to believe that UPS is engaged in a pattern or practice of misuse of that information in violation of section 290.46(j)(2): UPS includes a sex offender registry search in its standard package for California hub positions; it supplies criteria under which a registry record is "Decisional"; a centralized team applies those criteria; and UPS maintains in this action that the practice is lawful (paragraphs 43 and 54).

68. Plaintiff is a "person aggrieved by the misuse." He was denied employment by it, remains subject to registration, would apply again for UPS hub positions, and faces a real and immediate threat that UPS's criteria will again disqualify him (paragraph 58). Damages cannot prevent that future misuse.

69. Plaintiff is entitled to preventive relief, including a permanent injunction restraining UPS from using information disclosed pursuant to Penal Code section 290.46 --

including such information obtained through NSOPW or through a screening vendor reporting the California sex offender registry as the source of record -- for purposes relating to employment, except as authorized by section 290.46(j)(1) or another provision of law, and requiring UPS to withdraw any adjudication criteria that treat such information as disqualifying for California positions.

THIRD CAUSE OF ACTION

Failure to Provide a Box to Request a Copy of the Report

(Cal. Civ. Code §§ 1786.16(b)(1), 1786.50)

(Against All Defendants)

70. Plaintiff incorporates paragraphs 1 through 58 as though fully set forth here.

71. The First Advantage report was an investigative consumer report within the Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq. ("ICRAA"). UPS itself told Plaintiff that the report it would obtain is defined under ICRAA "as an 'investigative consumer report'" (paragraph 29), and the report conveyed information on Plaintiff's character, general reputation, personal characteristics, or mode of living, obtained through public-record and other searches [Cal. Civ. Code § 1786.2(c) -- definition not verified for this draft]. First Advantage, which assembles such reports for a fee, is an investigative consumer reporting agency.

72. UPS requested and procured the report for employment purposes, and is a person described in subdivision (d) of Civil Code section 1786.12.

73. Civil Code section 1786.16(b)(1) requires the employer to "Provide the consumer a means by which the consumer may indicate on a written form, by means of a box to check, that the consumer wishes to receive a copy of any report that is prepared."

74. UPS did not do so. Its own screen promised a "box beneath your signature," but none existed, and no other form gave Plaintiff a box to check to request a copy (paragraphs 30-31).

75. Civil Code section 1786.50(a) provides that a "user of information that fails to comply with any requirement under this title with respect to an investigative consumer report is liable to the consumer who is the subject of the report in an amount equal to the sum of all the following: (1) Any actual damages sustained by the consumer as a result of the failure or, except in the case of class actions, ten thousand dollars ($10,000), whichever sum is greater. (2) In the case of any successful action to enforce any liability under this chapter, the costs of the action together with reasonable attorney's fees as determined by the court."

76. Section 1786.50(b) provides: "If the court determines that the violation was grossly negligent or willful, the court may, in addition, assess, and the consumer may recover, punitive damages." UPS's violation was at least grossly negligent: UPS drafted a screen that told applicants to check a box UPS never provided.

77. Plaintiff is entitled to the greater of his actual damages or the statutory amount under section 1786.50(a)(1), costs, any attorney's fees recoverable, and punitive damages under section 1786.50(b).

FOURTH CAUSE OF ACTION

Deficient Investigative Consumer Report Disclosure

(Cal. Civ. Code §§ 1786.16(a)(2)(B), 1786.50)

(Against All Defendants)

78. Plaintiff incorporates paragraphs 1 through 58 and 70 through 77 as though fully set forth here.

79. Civil Code section 1786.16(a)(2)(B) permitted UPS to procure the report only if UPS first provided "a clear and conspicuous disclosure in writing to the consumer at any time before the report is procured or caused to be made in a document that consists solely of the disclosure," that, among other things, "(v) Notifies the consumer in writing of the nature and scope of the investigation requested, including a summary of the provisions of Section 1786.22," and "(vi) Notifies the consumer of the Internet Web site address of the investigative consumer reporting agency identified in clause (iv), or, if the agency has no Internet Web site address, the telephone number of the agency, where the consumer may find information about the investigative reporting agency's privacy practices, including whether the consumer's personal information will be sent outside the United States or its territories."

80. UPS procured the report without satisfying those conditions:

(a) Not a document consisting solely of the disclosure. The California-required content was spread across a multi-state screen carrying other States' notices and rights and a California screen carrying an electronic-signature agreement and an acknowledgment that the applicant had reviewed "this Agreement" (paragraphs 28-29 and 35). See Gilberg v. California Check Cashing Stores, LLC, 913 F.3d 1169 (9th Cir. 2019) [pin cite unverified].

(b) No notice of the nature and scope of the investigation requested. UPS never disclosed that it would order a sex offender registry search or a search of a Department of Justice website, the very search on which it denied Plaintiff employment (paragraph 33).

(c) No privacy-practices notice. The California disclosure did not identify the website where Plaintiff could find First Advantage's privacy practices or say whether his personal information would be sent outside the United States (paragraph 34).

81. Each failure is a failure to "comply with any requirement under this title with respect to an investigative consumer report" within section 1786.50(a). On information and belief, UPS uses the same screens for California applicants statewide and adopted them knowingly; the violations were willful or, at minimum, grossly negligent.

82. Plaintiff is entitled to the greater of his actual damages or the statutory amount under section 1786.50(a)(1), costs, any attorney's fees recoverable, and punitive damages under section 1786.50(b).

83. Plaintiff asserts no claim in this action under 15 U.S.C. § 1681n or § 1681o.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendant UNITED PARCEL SERVICE, INC. and DOES 1 through 10, inclusive, as follows:

1. On the First Cause of Action: actual damages, including lost wages and benefits and damages for emotional distress, according to proof; an additional amount as

determined by the jury, not exceeding three times the amount of actual damage and not less than the minimum provided by Penal Code section 290.46(j)(4)(A); and exemplary damages or, in the alternative, a civil penalty, as provided by Penal Code section 290.46(j)(4)(A);

2. On the Second Cause of Action: preventive relief under Penal Code section 290.46(j)(4)(B), including a permanent injunction as described in this pleading;

3. On the Third and Fourth Causes of Action: on each cause of action, the greater of actual damages or the amount provided by Civil Code section 1786.50(a)(1), and punitive damages under Civil Code section 1786.50(b);

4. Costs of suit, and attorney's fees to the extent recoverable under Penal Code section 290.46(j)(4)(A) or Civil Code section 1786.50(a)(2);

5. Prejudgment and post-judgment interest as permitted by law; and

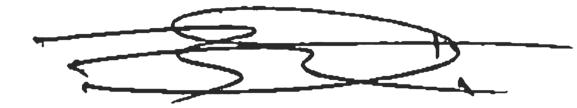
6. Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Under Federal Rule of Civil Procedure 38(b), Plaintiff BRENDAN NGEHSI NEWANFORBI demands a trial by jury on all claims and issues so triable.

Dated: _____

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

EXHIBIT

1

First Advantage Background Report

As filed by UPS, Felsing Decl. Ex. A (ECF No. 7-2 at 4-9)
Ordered July 17, 2024; scored July 19, 2024

Background Report

Confidential

BRENDAN NGWANFORBI
[redacted]
CID - 291131000

UNITED PARCEL SERVICE
Attn: XCHANGE USER
55 GLENLAKE PARKWAY NE
ATLANTA 30328
ATLANTA 30328

Account No: 235337

If you are a First Advantage Consumer

FirstAdvantage Enterprise Advantage

Please contact the First Advantage Consumer Center at:
1-800-845-6004 Toll Free (within the U.S.)
+1 971-280-8128 Toll Number (outside the U.S.)
Or visit http://fadv.com/our-company/contact-support.aspx for local contact details
For assistance, please contact our Customer Care team at 1-800 -888 -5773, or via chat by visiting http://help.fadv.com/ea

IMPORTANT NOTICE UNDER CALIFORNIA LAW

First Advantage does not guarantee the accuracy or truthfulness of the information as to the subject of the investigation, but only that it is accurately copied from public records. Information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of this report. In California, First Advantage shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures.

First Advantage no garantiza la exactitud o veracidad de la información en cuanto al objeto de la investigación, sino que solamente copia la información de los archivos públicos con exactitud. La información generada a raíz del robo de identidad, incluyendo evidencia de actividad criminal, puede ser incorrectamente asociada con el consumidor objeto de este informe. El cliente está de acuerdo y certifica que al ordenar y usar este informe está en estricto cumplimiento de cualesquiera leyes o regulaciones locales, estatales y federales que sean aplicables.

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Caution to Customer: Under the terms of the service agreement, this report is delivered with the understanding that the recipient client will hold the same in strict confidence and not disclose it to third parties and furthermore is to be used only for the purpose indicated in the Client's agreement for service, i.e. employment/volunteer or resident/tenant screening purposes. This report and information provided therein is strictly confidential as it contains personal and sensitive information of the consumer/applicant/candidate/employee and must be utilized solely for the business purposes consistent with the declared purpose in the service agreement and is not to be used by the client or third parties for any other purposes. Client agrees to abide and comply with all applicable laws in connection with this report including data privacy, data protection laws and other similar applicable regulations.

First Advantage is not the source of the data provided in this report in that the data is collected by First Advantage from third party data sources such as public records held in governmental databases or courthouses, schools, colleges, universities, company officials, or third party proprietary databases etc. Accordingly First Advantage does not warrant the accuracy of the information provided by those third parties and expressly disclaims any and all liability for any and all claimed losses, damages, expenses including attorney fees and costs incurred as a result of reliance upon the content of this report.

For US-based Clients or Clients obtaining reports on US residents: Client certifies that it has complied with the Fair Credit Reporting Act(FCRA) and that it has provided a clear disclosure in compliance with the FCRA to the consumer/applicant/candidate/employee and obtained consent and authorization from the consumer/applicant/candidate employee in order to receive this report. If the client intends to take adverse action based in whole or in part on the contents of this report, the client must provide the consumer with a copy of the report, a summary of consumers rights as prescribed by FCRA section 1681g(c)(3) and a copy of any applicable state law rights, if required before taking any action, wait a reasonable period of time for the consumer to dispute any inaccurate information and then can take adverse action. First Advantage has provided your company with copies of the CFPB Summary of Rights for this purpose.

For California based Clients or Clients obtaining reports on California residents: In California an investigative consumer reporting agency shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures.

For more information regarding the obligations of users of Consumer Reports under the FCRA, visit
http://www.fadv.com/Portals/0/Downloads/cfpb-notice-to-users-fcra.pdf.

General Consumer Information

Consumer's Name BRENDAN NGWANFORBI

FOUNTAIN APPLICANT ID AEAD84F6-29F4-40C9-A2E4-36FC26A4A4F9

Client Name UNITED PARCEL SERVICE

REQUESTORS EMAIL UPSFADVFOLLOWUP@UPS.COM

Client ID 235337

Client Representative XCHANGE USER

The following consumer information was used in the production of this report:
Last Name, First Name, Middle Name, SSN, Date of Birth, Address

SSN [redacted]

Address [redacted]

Date of Birth [redacted]

Other Names

Not Provided

Information Regarding this Order:

Position Applied For

Date Ordered 17/Jul/2024 09:52:19 PM

Background Check Completion Date 18/Jul/2024 06:50:04 PM

Report Last Updated on 18/Jul/2024 06:50:04 PM

Date Report Printed 05/Aug/2026 10:02:50 AM

Report ETA 19/Jul/2024

Revised Report ETA 18/Jul/2024

Self-Disclosed Criminal History
None

UDFS	
Label	**Value**
-	
Primary Job Location	US - LATHROP HUB (CALAH)
RRDDOpTypeCenterSort	1019HUB9539T
FountainApplicantId	aead84f6-29f4-40c9-a2e4-36fc26a4a4f9
Job Profile	H345 - Loader/Unloader - Hub
Cost Center	CC_9539T
RRDD	1019

All timestamps represent US Eastern Time

Note that different elements were searched and completed at different times from the start of the order - please refer to the timestamp associated with each element.

First Advantage Background Report Summary

Consumer's Name BRENDAN NGWANFORBI **Date Ordered:** 17/Jul/2024 09:52:19 PM

Background Check Completion Date: 18/Jul/2024 06:50:04 PM

Score Result 07/19/2024 - BASED ON YOUR CRITERIA, THE OVERALL CASE SCORE IS INELIGIBLE

Package Name: STANDARD PACKAGE			
Package Searches Ordered	**Status**	**Review**	**Score**
Social Security Verification	Complete	No	
Social Security Verification	Complete	No	Pass
First Advantage National Criminal File Plus	Complete	No	
First Advantage National Criminal File Plus STOCKTON, SAN JOAQUIN, CA	Complete	No	Eligible
National Sex Offender Registry	Complete	Yes**	
National Sex Offender Registry Search - Department Of Justice Web Site	Complete	Yes**	Decisional
Additional Searches Ordered			
NONE			

Remark

City Ordinance, State, or Federal law requires additional action and disclosure by employer to consumer prior to taking adverse action based on Consumer Report. FADV cannot provide Adverse Action letter mailing service on this candidate.

Comments

Adjudicated by the Centralized Adjudication Team

* Further review is required by the client to determine the consumer's eligibility based on background check results. Please refer to the corresponding detailed component report section for additional information.

** Further review is required by the client to determine the consumer's eligibility based on background check results. Please refer to the corresponding detailed component report section for additional information.

*** This product has been blocked from delivery due to compliance related restrictions.

**** Criminal Background Check to be completed after all other elements are completed as per customer's instructions for compliance with NYC Fair Chance Law.

Social Security Verification
Date Completed: 17/Jul/2024

Status: Complete
Score: Pass

The Social Security Number Verification (SSNV) matches the given SSN against consumer credit files contained in the databases of nationwide credit reporting agencies. The credit bureaus' consumer credit files contain information provided by companies with which the consumer has had financial dealings and/or public record information collected by the bureaus from the courts. The SSNV does not verify that the Social Security Administration issued a specific SSN to a consumer.

Social Security Verification results and Remarks returned from this search are for informational purposes and should not be relied upon as a basis for determining the eligibility of a consumer for credit, insurance, employment or any other product or service, without additional review with and clarification from the consumer.

SOCIAL SECURITY VERIFICATION NAME AND ADDRESS INFORMATION OBTAINED FROM: EXPERIAN

Customer Provided Information	
SSN [redacted]	**DOB** [redacted]

SSN State Issued
SSN Year Issued 2011

Name Type Report Subject — **Name** NGWA-NFORBI, BRENDAN NGEHSI
Name Type Former Name — **Name** NGWA, NFORBI BRENDAN

Addr Type Residence Address — **First Date** 04/01/2015 **Last** 04/01/2015
Address 4770 GYM 158 B DR
LAS VEGAS, NV 89119

Addr Type Former Address — **First Date** 06/01/2016 **Last** 07/01/2016
Address 490 W RIVERVIEW CIR
RENO, NV 89509

Addr Type Former Address — **First Date** 12/01/2014 **Last** 04/01/2017
Address 2535 GIMELLI CT APT 50
SAN JOSE, CA 95133

Addr Type Former Address — **First Date** 10/01/2020 **Last** 06/01/2021
Address 30 N GOULD ST STE 1916
SHERIDAN, WY 82801

Addr Type Former Address — **First Date** 08/01/2021 **Last** 05/01/2024
Address [redacted]

Employment Type ES
Employer Name FEDEX

Remarks and/or Social Security Alerts

07/17/24: SUBJECT NAME RETURNED MATCHED WITH A DEVELOPED NAME.

07/17/24: SSN PROVIDED WAS CHECKED AGAINST THE DEATH MASTER INDEX AND NO MATCH WAS REPORTED.

07/17/24: NO ALERTS RETURNED FROM SEARCH.

Order Process History	
Date	**Description**
17/Jul/2024 09:52:20 PM	Search In Progress.
17/Jul/2024 09:52:20 PM	Record Judged.

First Advantage National Criminal File Plus STOCKTON, SAN JOAQUIN, CA
Date Completed: 17/Jul/2024

Status: Complete
Score: Eligible

Record Source	DATABASE SEARCH
Search Results	No Record Found
Search Type	First Advantage National Criminal File Plus Search
Date of Search	17/Jul/2024
Address Covered	[redacted]
Address City Covered	
Address County Covered	
Address State Covered	
Address Zip	

Given Name Searched	BRENDAN NGWANFORBI
Developed Name Searched	BRENDAN NGEHSI NGWA-NFORBI, NFORBI BRENDAN NGWA

Order Process History

Date	Description
17/Jul/2024 09:52:20 PM	Record Ordered.
17/Jul/2024 10:01:07 PM	Search In Progress.
17/Jul/2024 10:01:07 PM	Record Judged.

National Sex Offender Registry Search - Department Of Justice Web Site
Date Completed: 18/Jul/2024

Status: Complete
Score: Decisional

Record Source	NATIONAL SEX OFFENDER REGISTRY
Search Results	Record Found
Search Type	NATIONAL SEX OFFENDER REGISTRY SEARCH-DEPT OF JUSTICE
Date of Search	18/Jul/2024
Search Period	07/03/2017 - 07/03/2024
Given Name Searched	BRENDAN NGWANFORBI
Developed Name Searched	NFORBI BRENDAN NGWA, BRENDAN NGWANFORBI, BRENDAN NGEHSI NGWA-NFORBI
Name on File	BRENDAN NGEHSI NGWANFORBI
Address on File	[redacted]
DoB on File	[redacted]
Sentence	SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY SENTENCE: REGISTERED SEX OFFENDER

Source Status History

Status Date	Description
17/Jul/2024 09:52:53 PM	Search in progress. Estimated completion by 07/18/2024

Order Process History

Date	Description
17/Jul/2024 09:52:20 PM	Search In Progress.
17/Jul/2024 09:52:21 PM	Search In Progress.
18/Jul/2024 04:04:50 AM	Search In Progress.
18/Jul/2024 06:25:34 PM	Record Judged.

EXHIBIT

2

UPS Applicant-System Record (Excerpts)

As filed by UPS, Felsing Decl. Ex. B (ECF No. 7-2 at 11, 16-18, 23-24)
Position, disclosure screens, pay, Hired Date, Rejected stage

Brendan Ngwanforbi

[redacted]

US - LATHROP HUB (CALAH) - 75456-Loader/Unloader - Hub - H345 - E&L - Twilight Monday-Friday 15:00-23:30 - External (current)

Qualification Questions (Data) - *Completed 07/17/2024 06:46PM*

Instructions

UPS is an equal opportunity employer. UPS does not discriminate on the basis of race, color, religion, sex, national origin, veteran, disability, age, sexual orientation, gender identity, or any other characteristic protected by law.

Do you have reliable transportation?

true

Can you perform these essential functions with or without reasonable accommodations?

Yes

Are you a U.S. citizen or otherwise authorized to work in the United States?

Yes

Are you at least 18 years old?

Yes

Disqualifying Rule (Rule) - *Completed 07/17/2024 06:46PM*

General Information + Standard (Data) - *Completed 07/17/2024 06:47PM*

Do you or have you ever had any relative(s) employed by UPS or any UPS subsidiary?

No

What is your relative's name?

No Answer Provided

What is your relative's location?

No Answer Provided

Have you ever been employed by UPS or any UPS subsidiary?

No

Have you ever been assigned to work at UPS or any UPS subsidiary through a temporary agency?

No

What is your current address?

[redacted]

Virtual Tour (Data) - *Completed 07/17/2024 06:47PM*

Instructions

Please review the video and select your acknowledgement.

Please confirm you've watched the virtual tour

Confirmed

Please designate your selection:

Yes, I want to continue my application

Are you sure you want to discontinue? This will terminate your application

No Answer Provided

Virtual Tour Rule (Rule) - *Completed 07/17/2024 06:47PM*

Arbitration Agreement (Data) - *Completed 07/17/2024 06:47PM*

Instructions

ARBITRATION AGREEMENT / LIMITATION OF RIGHTS

1. How This Agreement Applies. This Arbitration Agreement / Limitation of Rights ("Agreement") is a contract governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1 et seq., and evidences a transaction involving commerce. This Agreement is between United Parcel Service, Inc. or one of its affiliates, subsidiaries, or parent companies (the "Company") and Employee (sometimes also referred to as "you" or "your"). This Agreement is intended to be as broad as legally permissible, and, except as set forth in Section 2 of this Agreement below, it applies to all claims or controversies, past, present, or future, that otherwise would be resolved in a court of law or before a forum other than arbitration related in any way to your employment, including, without limitation, disputes arising out of or related to Employee's application and selection for employment, employment or relationship with the Company, and/or the termination of employment with the Company. Except as provided in Section 2 of this Agreement, this Agreement applies to any dispute, past, present, or future, that the Company may have against you or that you may have related to your application for employment, employment and/or termination of your employment against: (1) Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company's benefit plans or the plan's sponsors, fiduciaries,

I am able to perform the essential job functions

I may be able to perform the essential job functions with a disability related accommodation. I understand that medical documentation may be required to process this request and there is a maximum of 7 days to initiate this request otherwise the application process will terminate. I want to proceed with the request and complete the ADA form.

No Answer Provided

Are you able to perform these Job functions?

No Answer Provided

Accomodation Rule (Rule) - *Completed 07/17/2024 06:49PM*

Confirmation of Intent (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [OPENING_PAY_RANGE]

Please choose one of the follow options to continue:

I understand the job functions for role and I want to continue with my application. If hired, I commit to report for work daily and to be on time according to my work schedule

---

FAQ Rule (Rule) - *Completed 07/17/2024 06:49PM*

FCRA Notice (Data) - *Completed 07/17/2024 06:49PM*

Instructions

DISCLOSURE OF INTENTION TO OBTAIN CONSUMER REPORT FOR EMPLOYMENT PURPOSES

This disclosure is being provided to you pursuant to the federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 et seq. Under the FCRA, United Parcel Service, Inc. ("UPS") is required to make a clear and conspicuous written disclosure to you that UPS may obtain a criminal background report, employment history, driving record, education history, and/or other consumer reports* about you from a consumer reporting agency. These consumer reports may be used to evaluate your eligibility for hire or your continued employment with UPS, or for other employment purposes. These consumer reports may be obtained by UPS at any time after the receipt of your authorization to obtain the reports, and, if you are hired by UPS, throughout your employment with UPS, subject to applicable law.

* Under the FCRA, a "consumer report" is any written, oral, or other communication of any information by a consumer reporting agency bearing on an individual's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the individual's eligibility for, among other things, employment.

AUTHORIZATION REGARDING INTENTION TO OBTAIN
CONSUMER REPORT FOR EMPLOYMENT PURPOSES

By signing below, you acknowledge and agree as follows:

- I voluntarily and fully authorize United Parcel Service, Inc. (“UPS”) to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, which I received separately and signed to acknowledge my receipt and understanding;
- I voluntarily and fully authorize the release of all information necessary for UPS to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, including but not limited to criminal records, employment records, driving records, and educational records;
- I agree that if I become employed by UPS, UPS is authorized by me, at any time during the course of my employment, to obtain subsequent criminal background reports, driving records, or other consumer reports about me so as to update, renew, extend or evaluate my continued employment, or to consider me for other employment positions, except where prohibited by applicable law;
- I understand and acknowledge that, if UPS obtains credit history information on me, it will be used to evaluate whether I would present an unacceptable risk of theft or other dishonest behavior in the job for which I am being considered; and
- I understand and acknowledge that UPS may be required to share the consumer reports it obtains about me, or the information contained therein, with appropriate third parties for employment-related purposes, and I expressly authorize UPS to make such disclosures.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this agreement and understand its contents.

I agree

FCRA - State Group 1 Disclosure (CA, MN, NJ, OK) (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES REGARDING UPS’S INTENTION TO OBTAIN
A CONSUMER REPORT ABOUT YOU FOR EMPLOYMENT PURPOSES

If you live in or are applying for employment in any of the following states, please take note:

☐ CALIFORNIA: Because the position you are being considered for at United Parcel Services, Inc. ("UPS") will involve access to confidential financial and other business information and valuable property belonging to UPS's customers, a consumer report about you is necessary and important for UPS to review in order to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the performance of your job. Accordingly, UPS intends to obtain a consumer report about you for employment purposes pursuant to section 1024.5(a)(7) of the California Labor Code. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

For information regarding your privacy, please see the following link.

http://www.fadv.com/privacy-policy.aspx

☐ MINNESOTA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy o the report, free of charge, by checking the box beneath your signature as indicated below. You also have the right, under

M.S.A. § 13C.02, subd. 3, to request additional information on the nature of the report by submitting a written request to First Advantage, the consumer reporting agency whose contact information is shown below, for a complete and accurate disclosure of the nature and scope of any consumer report UPS ordered about you. The consumer reporting agency must mail or deliver this disclosure to you within five days after its receipt of your request, or UPS's request made on your behalf, whichever date is later.

☐ NEW JERSEY: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

☐ OKLAHOMA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

* * *

The consumer reporting agency that will prepare and provide the report to UPS is:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that i have carefully reviewed this agreement and understand its contents.

I agree

FCRA California Disclosure (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS

With your express authorization and consent, United Parcel Services, Inc. ("UPS") may obtain a report about you for employment purposes that is defined under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code §§ 1786 to 1786.80, as an "investigative consumer report." The report will be prepared by:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

The report provided by First Advantage may include information on your character, general reputation, personal characteristics, and mode of living. Such information will be used to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the job for which you are being considered.

Pursuant to section 1786.22 of the California Civil Code, you may view the file maintained on you by First Advantage during normal business hours. You may obtain a copy of the file, upon submitting proper identification and paying the costs of duplication services, by appearing at First Advantage's offices in person, during normal business hours and on reasonable notice, or by certified mail. You may also receive a summary of the file by telephone, upon submitting proper identification and a written request. First Advantage has trained personnel available to explain your file to you, including any coded information, and will provide a written explanation of any coded information contained in your file. If you appear in person, you may be accompanied by one other person, provided that person furnishes proper identification. "Proper identification" includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. If you cannot identify yourself with such information, the consumer reporting agency may require additional information concerning your employment and personal or family history to verify your identity.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this Agreement and understand it's contents.

I agree

Tentative Hired Date (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Please select your earliest availability from the options below.

As you continue your application and have successfully completed all required forms and documents, you will select your official start date. Your official start date may differ from the earliest availability date you select below.

What is the earliest date you could be available to start?

53398214-5e20-4517-ab90-7be2ef552392

Tentative Hired Date Rule (Rule) - *Completed 07/17/2024 06:49PM*

Integration BGC Consent (First Advantage 1-step) - *Completed 07/17/2024 06:52PM*

Rehire Checks Eligibility (Custom) - *Completed 07/17/2024 06:52PM*

Instructions

Please wait a moment you are moving forward in your process we will need to validate your rehire eligibility with UPS.

Rehire Check Rule (Rule) - *Completed 07/17/2024 06:52PM*

Confirmation of Pay (Data) - *Completed 07/17/2024 06:53PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Tentative Hired Date: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_START_DATE_TIME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_PAY_RATE]

Please choose one of the following options to continue:

I accept this pay

Confirmation of Pay Rule (Rule) - *Completed 07/17/2024 06:53PM*

UPS Policy Sign Off - CA (Multistage) - *Completed 07/17/2024 06:54PM*

Our Commitment to Integrity-deleted-1759439938 (Data) -

Instructions

UPS has a long tradition of transforming and adapting to the needs of our customers, but our commitment to integrity remains steadfast. We remain committed to a set of beliefs that guided our founders and their successors, and currently guides employees and representatives of UPS.

It is this commitment that will continue to move us forward.

More than 100 years ago, UPS Founder Jim Casey began building our company by asking retailers for their trust. They entrusted us with their business, and every day, UPS people honored that trust and maintained relationships with customers by acting with integrity. We have preserved this philosophy over the years, and it has become our guiding principle.

Today, UPS employees and representatives continue to uphold our strong brand and the legacy of integrity that Jim started.

This requires us to conduct business fairly, honestly, and ethically.

For our company to survive and remain successful, we must have a sound set of beliefs that serves as the foundation for our decisions and actions. We must remember that our success, reputation, and brand were developed over many years and can be damaged if we do not act responsibly with an uncompromising set of common beliefs.

A commitment to integrity is about creating a climate for continued success. It is about creating an environment where people can make good decisions. It is about doing the right thing in every business situation. By using good judgment and respecting others, UPS's commitment to integrity will endure.

UPS's reputation for ethical behavior has enabled us to attract and retain the best people and loyal customers; it has opened doors in new and emerging global markets and allowed us to transform our business to meet changing customer needs.

Compliance with our legal and ethical obligations is the responsibility of every UPS employee and representative, as is the responsibility to report potential violations of those obligations. Reporting may be accomplished directly through a discussion with a member of the management team or by using the UPS Help Line. Information about the UPS Help Line is available on UPSers.com.

No Questions Available For This Stage

Professional Conduct/Anti Harassment-deleted-1759439965 (Data) -

Instructions

We want UPS to be a safe place to work where everyone is treated with dignity and

respect. When you treat each other with respect, you are helping make UPS a great

place to work and one where we all are proud to be UPSers.

A few rules we expect everyone to live by:

· Keep your hands to yourself.

No touching people in an inappropriate way.

- Don't make sexual advances at work – ever.
- Don't make comments about or refer to anyone's gender, race, religion, sexual orientation or ethnicity in an offensive or insulting way. No matter our differences, being a UPSer should unite us.
- Don't send inappropriate text messages or social media posts to UPSers – ever.
- That includes language, symbols or images that could be offensive based on race, ethnicity, sexual identity, gender, religion or other factors.
- Don't display language, symbols or images on your personal belongings or on company property that could be considered offensive based on race,

The information you submit will be kept confidential, except that (i) supervisors and managers may be informed regarding restrictions on the work or duties of disabled veterans, and regarding necessary accommodations; (ii) first aid and safety personnel may be informed, when and to the extent appropriate, if you have a condition that might require emergency treatment; and (iii) Government officials engaged in enforcing laws administered by the Office of Federal Contract Compliance Programs, or enforcing the Americans with Disabilities Act, may be informed; and (iv) UPS may also use your veteran status for internal reporting on our goals for diversity and inclusion as well as to help plan recognition opportunities for our veterans (i.e., Veteran's Day)..

UPS maintains an affirmative action program designed to promote the employment and advancement in employment of veterans; including the protected veterans listed above consistent with the requirement of VEVRAA.

No Questions Available For This Stage

Emergency Contact-deleted-1751231570 (Data) -

No Questions Available For This Stage

Education-deleted-1751231574 (Data) -

No Questions Available For This Stage

Personal Information-deleted-1751231565 (Data) -

No Questions Available For This Stage

Pay Card Rule (Rule) - *Completed 07/17/2024 06:57PM*

E&Y WOTC (E&Y WOTC) - *Completed 07/17/2024 06:57PM*

Training Video (Data) - *Completed 07/17/2024 06:52PM*

Instructions

Please watch the safety training video below to help you get ready for your first day on the job. Once complete, you will be able to select your first day of work.

Stage Body

<iframe width="560" height="315" src="https://www.youtube.com/embed/-7SOK6CpRzo?si=9cnSBAUCJomU-pwP" title="YouTube video player" frameborder="0" allow="accelerometer; autoplay; clipboard-write; encrypted-media; gyroscope; picture-in-picture; web-share" referrerpolicy="strict-origin-when-cross-origin" allowfullscreen></iframe>

No Questions Available For This Stage

Hired Date (Scheduler) - *Completed 07/17/2024 07:06PM*

Attended

N/A

Scheduled

~~07/22/2024 04:00PM - 08:00PM (PDT)~~ *Cancelled 07/21/2024 03:59AM*

Location

11800 S HARLAN RD LATHROP California 95330

Host

UPS Jobs

I-9 Section 2 Not Complete (Custom) - *Completed 07/17/2024 07:18PM*

Instructions

Almost done! The next step is to complete section 2 of your I-9 form. Check out this video for a step-by-step guide to completing section 2: https:/UPSjobs.link/i9help

You'll receive an e-mail from Equifax with instructions. The e-mail will be sent from i-9management@equifax.com. It's very important that you complete this step as soon as possible and before your first day of work.

If you have any questions, call 833-480-0064 and select option 3.

Thank you,

UPS Employment Center

Ready to Hire (Custom) - *Completed 07/21/2024 03:59AM*

Instructions

You have now completed the application process. You will receive a welcome e-mail 24 hours prior to your scheduled start date at the email address you submitted with your application. This e-mail will include all necessary information for preparing for your first day of work.

If you have any questions or do not receive this e-mail message, please call 833-480-0064.

Rejected (Rejected) - *Current Stage*

Instructions



Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

Explore Jobs at UPS

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Compliance Center - Deprecated (Equifax Compliance Center) - *Completed 07/17/2024 07:05PM*

Rejected (Rejected) - *Current Stage*

Instructions



Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

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LATHROP HUB (CALAH) - 06 - Sourcing Only

Job Selector (Job Selector) - *Completed 07/17/2024 06:46PM*

Instructions

Due to high demand, please be aware you may not find the role you originally applied for as UPS roles often fill before they can be unposted from job boards.

This page is designed to help you find a role that best fits your needs (e.g., preferred location, different pay/hours). The miles displayed in the descriptions represent the approximate distance from your home zip code to that facility.

Being on time is very important at UPS, so please ensure your commute distance and time is manageable on a consistent basis. If you do not see a role that fits your needs, we encourage you to sign up for job alerts on upsjobs.com.